

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Lauren Kerstein	Team: Team # 2	CCRB Case #: 201403918	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☒ Injury
Incident Date(s) Saturday, 04/19/2014 5:00 AM	Location of Incident: § 87(2)(b); 75th Precinct Stationhouse	18 Mo. SOL 10/19/2015	Precinct: 75		
Date/Time CV Reported Thu, 04/24/2014 8:09 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 04/24/2014 8:09 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. Officers			NARCBBN
2. POM Dmaine Freeland	27612	941208	NARCBBN
3. An officer			NARCBBN

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Sean Gillespie	19384	947029	NARCBBN
2. DT3 John Mchugh	00581	948163	NARCBBN
3. POM Johnpaul Catano	20210	945159	NARCBBN

Officer(s)	Allegation	Investigator Recommendation
A . POM Dmaine Freeland	Abuse: PO D'maine Freeland entered and searched § 87(2)(b) in Brooklyn.	A . Exonerated
B . An officer	Force: An officer struck § 87(2)(b) with a flashlight inside § 87(2)(b) in Brooklyn.	B . Unfounded
C . Officers	Abuse: Officers did not obtain medical treatment for § 87(2)(b) at the 75th Precinct Stationhouse.	C . Unfounded
D . POM Dmaine Freeland	Off. Language: PO D'maine Freeland made remarks to § 87(2)(b) based upon the sex of § 87(2)(b) inside the 75th Precinct Stationhouse.	D . Unsubstantiated
E . POM Dmaine Freeland	Discourtesy: PO D'maine Freeland spoke discourteously to § 87(2)(b) at the 75th Precinct Stationhouse.	E . Unsubstantiated

Case Summary

§ 87(2)(b) filed this complaint with the CCRB on April 24, 2014, via phone (encl. C1-C4). On April 19, 2014, at approximately 5 a.m., officers entered § 87(2)(b) in Brooklyn. The following allegations resulted:

- **Allegation A: Abuse of Authority – PO D’maine Freeland entered and searched § 87(2)(b) in Brooklyn.**
§ 87(2)(g). It is therefore recommended that **Allegation A** be closed as **exonerated**.
- **Allegation B: Force – An officer struck § 87(2)(b) with a flashlight inside § 87(2)(b) in Brooklyn.**
- **Allegation C: Abuse of Authority – Officers did not obtain medical treatment for § 87(2)(b) inside the 75th Precinct Stationhouse.**
§ 87(2)(g). It is recommended that **Allegations B and C** be closed as **unfounded**.
- **Allegation D: Offensive Language – PO D’Maine Freeland made remarks to § 87(2)(b) based upon the sex of § 87(2)(b) at the 75th Precinct Stationhouse.**
- **Allegation E: Discourtesy – PO D’Maine Freeland spoke discourteously to § 87(2)(b) at the 75th Precinct Stationhouse.**
§ 87(2)(g).

It is therefore recommended that **Allegations D and E** be closed as **unsubstantiated**.

This case was originally assigned to Katherine Broeksmit then Inv. Sarah Milardo, upon their resignations from the CCRB this case was re-assigned to Inv. Lauren Kerstein on August 22, 2014. This case was unsuitable for mediation.

Results of Investigation

Civilian Statements

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) was § 87(2)(b) at the time of this incident. She is a § 87(2)(b) black woman with black hair and brown eyes.
- § 87(2)(b) refused to provide her employment information.

CCRB Statement

§ 87(2)(b) provided an initial statement to the CCRB on April 24, 2014, and an in-person statement on April 28, 2014 (encl. D1-D11).

On April 19, 2014, at approximately 5 a.m., § 87(2)(b) and § 87(2)(b) were sleeping inside § 87(2)(b)'s apartment at § 87(2)(b) § 87(2)(b) in Brooklyn, when officers rushed into her apartment.

§ 87(2)(b) was standing by her bedroom door when PO D’maine Freeland, identified via investigation, pushed her into the bathroom with his shield and said, “clear” (for officer descriptions, see encl. D5). § 87(2)(b) and § 87(2)(b) were handcuffed and placed in the prisoner van outside.

§ 87(2)(b) § 87(2)(b)'s daughter, and her friend, § 87(2)(b) who were just coming home from a night out, arrived in front of § 87(2)(b) and began yelling and videotaping the officers outside the van. They were then arrested and put in the van.

At the precinct, § 87(2)(b) was put in a holding cell with § 87(2)(b) and § 87(2)(b). § 87(2)(b) was in the adjacent holding cell. § 87(2)(b) complained that his head hurt and that he was dizzy. § 87(2)(b) noticed that § 87(2)(b)'s left eye was puffy but did not see how he sustained the injury. While in the holding cells, § 87(2)(b) told PO Freeland and PO Johnpaul Catano, identified via investigation, that he wanted to go to the hospital. PO Catano explained that everyone is given medical attention at central booking.

In the holding cells, PO Freeland and § 87(2)(b) were arguing. § 87(2)(b) and § 87(2)(b) were both telling § 87(2)(b) to stop but § 87(2)(b) said "fuck you" to PO Freeland and PO Freeland said "fuck you" back. Then PO Freeland told § 87(2)(b) to tell him how she wanted it, from the back or the front, and he would give it to her § 87(2)(g). In her initial statement, § 87(2)(b) stated that PO Freeland had called § 87(2)(b) a "ho."

PO Freeland and PO Catano later went back to § 87(2)(b)'s apartment to pick up equipment they had left at her home from the search warrant.

Victim: § 87(2)(b)

- § 87(2)(b) was § 87(2)(b) at the time of this incident. He is a § 87(2)(b) black man with black hair and brown eyes.
- § 87(2)(b).

Arrest Photo

No physical injuries can be seen on § 87(2)(b)'s face (encl. F1).

CCRB Statement

§ 87(2)(b) was interviewed at the CCRB on April 28, 2014. § 87(2)(g)

§ 87(2)(b) was asleep with the covers over his head when an unidentified officer, "PO1" hit him in the left side of his face and mouth approximately five times with a flashlight before handcuffing him. § 87(2)(b) described PO1 as a 30-year-old 200-pound Hispanic or white man, less than 6'3" tall, with an average build and a dark colored beard.

In the holding cells, § 87(2)(b) and PO Freeland were arguing and PO Freeland may have referred to § 87(2)(b) as a "ho" but § 87(2)(b) could not recall if that was the exact word PO Freeland used. § 87(2)(b) told PO Freeland that he could never have someone as "cute" as her and PO Freeland responded that he could "give it" to her "real good."

In the holding cells, § 87(2)(b) asked PO Freeland and PO Catano to go to the hospital. PO Catano and PO Freeland instructed § 87(2)(b) to wait until central booking.

Attempts to Contact Civilians

- Between May 9, 2014, and July 9, 2014, five calls were placed and one letter was sent to § 87(2)(b) with no response.
- § 87(2)(b)'s address was obtained from her arrest report and on May 9, 2014, one letter was sent. The letter was returned as having an insufficient address. A Lexis Nexis search was conducted for a phone number and alternate address for § 87(2)(b) with negative results.
- Between September 9, 2014 and September 23, 2014, three phone calls and one letter were sent to § 87(2)(b) and § 87(2)(b) to schedule a photo viewing with no response.

NYPD Statements:

Subject Officer: PO D'MAINE FREELAND

- PO Freeland is a § 87(2)(b) black man. He is § 87(2)(b) with black hair and brown eyes.
- On April 19, 2014, PO Freeland worked from 3:27 a.m. to 1 p.m. assigned to 75 Precinct Module 3. PO Freeland worked in plainclothes and was not assigned to a motor vehicle.

Memo book

5:20 a.m., en route to § 87(2)(b) 6:05 a.m., execute search warrant. 9 a.m., en route to 75 Precinct. 9:15 a.m., arrest paperwork. 3 p.m., two females one male transported to Brooklyn Central Booking (encl. I1-I2).

Arrest Reports and Summons

§ 87(2)(b) and § 87(2)(b) § 87(2)(b) s arrest reports and § 87(2)(b) s summons were prepared by PO Freeland (encl. G1-H1) § 87(2)(g)

CCRB Statement

PO Freeland provided a statement to the CCRB on October 14, 2014 (encl. J1-J4).

PO Freeland was granted a narcotics search warrant for § 87(2)(b) to search for crack/cocaine. PO Freeland was assigned to bunker #1 and held a shield.

PO Freeland entered the apartment and assisted in the arrest of § 87(2)(b) During this time § 87(2)(b) was handcuffed in a different room and PO Freeland did not witness § 87(2)(b) getting handcuffed or an officer hit him in the face with a flashlight. PO Freeland did not observe any facial injuries on § 87(2)(b) and did not complain of any injuries.

While the officers searched the apartment, § 87(2)(b) and § 87(2)(b) tried to push their way inside the apartment and were acting very irate. After refusing to leave when PO Freeland told them they were not allowed inside the apartment because they were executing a search warrant, both women were arrested. Marijuana and marijuana paraphernalia was recovered from the apartment search.

At the precinct, PO Freeland placed § 87(2)(b) and § 87(2)(b) in their cells. Both women were yelling profanities that were directed at all the officers at the precinct. PO Freeland stated that he ignored them and denied calling § 87(2)(b) a “ho,” saying “fuck you,” or “You want it from the back? Tell me, I’ll give it to you.” He did not hear any other officer make these statements. PO Freeland never used profanity nor heard another officer use profanity.

§ 87(2)(b) did not request medical treatment. PO Freeland never refused to provide § 87(2)(b) with medical treatment.

PO Freeland noted that PO Gilliepsie, Det. McHugh and PO Catano are the only officers on his team that had facial hair at the time of the incident.

Subject Officer: PO SEAN GILLESPIE

- PO Gillespie was § 87(2)(b) at the time of this incident. He is a § 87(2)(b) white man with black hair and brown eyes.
- On April 19, 2014, PO Gillespie worked from 4:27 a.m. to 1p.m., assigned to the 75th Precinct field team. PO Gillespie worked in plainclothes and was assigned bunker #2 during the search warrant and to the prisoner van after the search warrant.

Subject Officer: PO JONHPAUL CATANO

- PO Catano was § 87(2)(b) at the time of this incident. He is a § 87(2)(b) Hispanic man with black hair and brown eyes and at the time of his CCRB interview, had a mustache and beard.
- On April 19, 2014, PO Catano worked in plainclothes from 4:27 p.m. to 1 p.m. assigned to a tactical team executing search warrants.

Witness Officer: DET. JOHN MCHUGH

- Det. McHugh was § 87(2)(b) at the time of this incident. He is a § 87(2)(b) white man with blonde hair and hazel eyes. At the time of his interview, Det. McHugh had a full beard and mustache.
- On April 19, 2014, Det. McHugh worked from 4:27 a.m. to 10 a.m. assigned to the 75 module field team. Det. McHugh was dressed in plainclothes.

Memo books

Their memo book entries were consistent with their statements (encl. K1-K2, M1-M3, O1-O2).

CCRB Statement

PO Gillespie, PO Catano and Det. McHugh provided statements to the CCRB on November 13, 2014 (P2-P4), October 29, 2014 (encl. L1-L3), and November 18, 2014 (N2-N4) respectively. § 87(2)(g)

PO Gillespie was assigned to bunker #2 and held a shield, PO Catano was assigned to cuff and toss.

PO Catano and Det. McHugh did not handcuff or witness § 87(2)(b) or § 87(2)(b) handcuffed. PO Gillespie witnessed another officer, who he could not recall, handcuff § 87(2)(b). None of the officers witnessed an officer hit § 87(2)(b) in the face with a flashlight.

PO Gillespie, PO Catano and Det. McHugh did not observe any injuries on § 87(2)(b) or hear § 87(2)(b) complain of any injuries. Det. McHugh left the apartment ten minutes later to execute another search warrant and did not go back to the stationhouse.

At the precinct, PO Gillespie and PO Catano never heard PO Freeland call § 87(2)(b) a “ho,” say “fuck you,” or “You want it from the back? Tell me, I’ll give it to you.” PO Gillespie could not recall if he had facial hair at the time of the incident.

PO Gillespie transported § 87(2)(b) to Brooklyn Central Booking. The only time he was made aware of a medical issue was when § 87(2)(b) told EMS workers at Central Booking that he § 87(2)(b).

PO Catano, Det. McHugh and PO Gillespie could not recall if they had facial hair at the time of the incident.

NYPD Documents

Search Warrant

“No-knock” search warrant § 87(2)(b) was requested by PO Freeland and signed by § 87(2)(b) on § 87(2)(b). The search warrant requested that officers enter § 87(2)(b) in Brooklyn, arrest “§ 87(2)(b)” and seize the following: crack/cocaine and other evidence of the possession and distribution of crack/cocaine (encl. R4-R6).

Command log

§ 87(2)(b), § 87(2)(b) and § 87(2)(b) were signed into the command log by PO Freeland at 8:20 a.m. § 87(2)(b)’s condition is listed as apparently normal (encl. V1-V2).

Medical Treatment of Prisoner Report

PO Freeland filled out a medical treatment of prisoner report for § 87(2)(b) that states § 87(2)(b) signed the form stating that he refused medical treatment (encl. S2).

Other Evidence

§ 87(2)(b)'s pre-arraignment screening form was requested on August 22, 2014, from Correctional Health Services. On October 9, 2014, a follow-up call was made in regards. On November 12, 2014, Correctional Health Services left a message asking for a callback. A message was left on that same day with no response.

Summons/Arrest for Incident and Disposition

- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Civil Proceedings

- § 87(2)(b) § 87(2)(b) and § 87(2)(b) have not filed a Notice of Claim with the City of New York as of September 26, 2014, almost three months after the 90-day filing period, with regard to the incident (encl. V1).

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilians CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) and § 87(2)(b) (encl. B2-B3).

Subject Officer CCRB History

- PO Freeland has been a member of the service for eight years and there are two substantiated CCRB allegations against him for threat of force and retaliatory summons allegations. The Board made no recommendations (encl. B1).

Conclusion

Allegations Not Pleaded

- § 87(2)(b) alleged that PO Freeland pushed her into the bathroom with his shield, which did not result in injury. § 87(2)(g)

Identification of Subject Officers

- PO Freeland is the officer who requested the search warrant, § 87(2)(g)
- § 87(2)(b) alleged that a 30-year-old, 200-pound Hispanic or white man, less than 6'3" tall, with an average build and a dark colored beard hit him in the face with a flashlight approximately five times before handcuffing him. § 87(2)(b) did not witness this force. PO Freeland mentioned that PO Catano, Det. McHugh and PO Gillespie were the only officers with facial hair on his team. All three officers are close in age, height and weight and all have dark colored facial hair. § 87(2)(b) refused to

come in for a photo viewing. All officers were interviewed and denied hitting him in the face with a flashlight. § 87(2)(g)

- § 87(2)(g)

Investigative Findings and Recommendations

Allegation A: Abuse of Authority – PO D'maine Freeland entered and searched § 87(2)(b) in Brooklyn.

It is undisputed that officers entered § 87(2)(b) in Brooklyn.

Search Warrant § 87(2)(b), issued by Judge § 87(2)(b) for § 87(2)(b) in Queens, authorized officers to enter and search the location to recover crack/cocaine, crack/cocaine packaging, evidence of drug trafficking, and any records of ownership pertaining to the location.

Officers who have obtained a judge-issued search warrant can enter the private residence listed on the search warrant, detain all perpetrators and seize contraband. Patrol Guide, 212-105 (encl. A1-A6).

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **exonerated**.

Allegation B: Force – An officer struck § 87(2)(b) with a flashlight inside § 87(2)(b) in Brooklyn.

Allegation C: Abuse of Authority – Officers did not obtain medical treatment for § 87(2)(b) inside the 75th Precinct Stationhouse.

§ 87(2)(b) alleged that before he was handcuffed, an officer hit him in the face with a “huge metal” flashlight five times. Then, while at the 75th Precinct Stationhouse, he alleged that he requested medical treatment from PO Catano and PO Freeland but was refused. § 87(2)(b) did not witness the force used against § 87(2)(b) but stated that at the 75th Precinct, she heard him ask the officers for medical treatment and observed swelling on his face.

PO Catano, Det. McHugh and PO Gillespie, who match the physical description § 87(2)(b) provided, denied hitting § 87(2)(b) with the flashlight or seeing another officer do so. PO Gillespie observed an officer handcuff § 87(2)(b) and denied that any force was used. PO Catano and PO Freeland denied that they refused to provide medical treatment to § 87(2)(b) and no other officer interviewed heard them refuse § 87(2)(b) medical treatment.

§ 87(2)(b)'s arrest photo shows no swelling or bruising on his face. § 87(2)(b) signed the medical treatment of prisoner form stating that he refused medical treatment. § 87(2)(b)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

it is recommended that **Allegations B and C** be closed as **unfounded**.

Allegation D: Offensive Language – PO D'Maine Freeland made remarks to § 87(2)(b) based upon the sex of § 87(2)(b) at the 75th Precinct Stationhouse.

Allegation E: Discourtesy – PO D'Maine Freeland spoke discourteously to § 87(2)(b) at the 75th Precinct Stationhouse.

§ 87(2)(b) and § 87(2)(b) alleged that during an argument with § 87(2)(b) PO Freeland called her a “ho,” said “fuck you,” and “You want it from the back or the front? Tell me I’ll give it to you.”

PO Freeland denied making the discourteous statements and all other officers interviewed denied hearing Mr. PO Freeland utter the discourteous and offensive statements to § 87(2)(b)

§ 87(2)(g) It is therefore recommended that **Allegations D and E** be closed as **unsubstantiated**.

Team: ____2____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date